

Sixty-ninth Legislative Assembly of North Dakota
In Regular Session Commencing Tuesday, January 7, 2025

SENATE BILL NO. 2082
(Energy and Natural Resources Committee)
(At the request of the Adjutant General)

AN ACT to amend and reenact subsection 2 of section 37-17.1-07.1 of the North Dakota Century Code, relating to the state's hazardous chemical fee system.

BE IT ENACTED BY THE LEGISLATIVE ASSEMBLY OF NORTH DAKOTA:

SECTION 1. AMENDMENT. Subsection 2 of section 37-17.1-07.1 of the North Dakota Century Code is amended and reenacted as follows:

2. Establishment of funds.

- a. There is created in the state treasury a nonlapsing restricted account to be known as a state hazardous chemicals preparedness and response fund. The fund consists of revenue collected from the state hazardous chemical fee system and funds appropriated by the legislative assembly. Moneys in the fund shall be appropriated biennially to the division of homeland security for carrying out the purposes, goals, and objectives of SARA title III, and the state hazardous chemicals preparedness and response program.
- b. The county treasurer of each county shall establish a nonlapsing restricted account, to be known as the county hazardous chemicals preparedness and response account. The county hazardous chemicals preparedness and response account consists of revenue from the state hazardous chemicals fee system, county, federal or state funds, grants, and any private donations provided to finance the county hazardous chemicals preparedness and response program.
- c. The director of the division of homeland security shall set appropriate fees for the state hazardous chemical fee system subject to the following:
 - (1) Changes to fees charged will take effect on January first;
 - (2) An increase to fees levied on a per chemical basis made after January 1, 2026, may not exceed five dollars per year;
 - (3) The director shall announce any fee increases made after January 1, 2026, a minimum of one year before the effective date; and
 - (4) The director may consider economic conditions, the general economy, and the availability of funds appropriated by the legislature to offset the costs of administering the program when setting fees.
- d. Each owner and operator of a facility, as defined in SARA title III, shall pay an annual hazardous chemicals fee to the division of homeland security.
 - (1) The fee must be paid by March first of each year.
 - (2) The fee is ~~twenty-five dollars~~ levied on a per chemical basis for each chemical within the meaning of title 40, Code of Federal Regulations, part 355.20, or its successor which is required under section 312 of SARA title III, to be listed on the hazardous chemical inventory form (tier II) which the owner or operator must submit to the division. The federal requirements must be used for completing the tier II form,

including the threshold amounts, as outlined in title 40, Code of Federal Regulations, part 20.

- (3) The maximum fee for a facility under this section is ~~four hundred seventy-five~~nine hundred fifty dollars.
 - (4) The director of the homeland security division may impose fees for both late filing of reports and late payment of fees: subject to the following:
 - (a) A late fee ~~must equal~~may not exceed the amount of the hazardous chemicals fee owed under this subdivision;
 - (b) After six months the director shall process further violations under willful violations in subsection 4:; and
 - (c) A facility exempt from fees under this subdivision which is late filing reports under this section may be subject to a late fee equal to the amount the facility would be charged if it was not exempt.
 - (5) The division of homeland security shall transfer to the county hazardous chemicals preparedness and response account one-half of the regular fees collected from the state's hazardous chemicals fee system.
- d.e. The owners or operators of family farm enterprises that are not engaged in the retail or wholesale of hazardous chemicals and facilities owned by the state or local governments are exempt from the fee under subdivision c. For purposes of this section, the terms "family farm" and "farmer" have the same meaning as set forth in section 6-09.11-01.
- e.f. ~~The state~~State and county governments are authorized to accept and may deposit grants, gifts, and federal funds into the hazardous chemicals preparedness and response fund and accounts for the purpose of carrying out the hazardous chemicals preparedness and response programs to include training, exercising, equipment, response, and salaries, and local emergency planning committee member stipends not to exceed thirty percent of state per diem per meeting attended. In lieu of stipends the committee chairman may provide a meal or refreshments other than alcoholic beverages.
- f.g. "Hazardous chemical" means as defined in title 40, Code of Federal Regulations, part 355.20 and title 29, Code of Federal Regulations, part 1910.1200.
- g.h. The state hazardous chemicals fee system does not supersede a city fee system for hazardous chemicals.

President of the Senate

Speaker of the House

Secretary of the Senate

Chief Clerk of the House

This certifies that the within bill originated in the Senate of the Sixty-ninth Legislative Assembly of North Dakota and is known on the records of that body as Senate Bill No. 2082.

Senate Vote: Yeas 46 Nays 1 Absent 0

House Vote: Yeas 81 Nays 11 Absent 2

Secretary of the Senate

Received by the Governor at _____ M. on _____, 2025.

Approved at _____ M. on _____, 2025.

Governor

Filed in this office this _____ day of _____, 2025,

at _____ o'clock _____ M.

Secretary of State